

24PR00973 Matter of Salada Living Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-24

Motion: Petition for Removal of Trustee, Compelling Accounting, and Other Relief

Source URL: <https://sonoma.courts.ca.gov/online-services/tentative-rulings/probate-tentative-rulings/trust-tentative-rulings>

Source SHA-256: 4964e90b8b1d2e55dc4504270298a9306471be7f60a2fab94691dcb12991e445

Matter of Salada Living Trust

24PR00973

Petition for Removal of Trustee, Compelling Accounting, and Other Relief

Tentative Ruling: This matter is CONTINUED to November 13, 2026 at 9:30 a.m. in Department 12 to allow the petitioner an opportunity to cure the notice defects noted below, and for the other reasons noted below.

The notice of hearing on a pleading filed in a proceeding under the Probate Code must state the complete title of the pleading to which the notice relates. California Rules of Court Rule 7.50. The notice of hearing filed April 1, 2026 does not state the complete title of the pleading to which the notice relates. Thus, notice is defective to any person notified by use of said notice of hearing.

Melchor V. Salada, the respondent and trustee, is represented by counsel of record in this proceeding, namely, Daniel J. Wilson, Esq. Per the proof of service of the First Amended Petition, filed July 9, 2026, Melchor Salada was served care of counsel only, in violation of California Rule of Court Rule 7.5(b) and California Probate Code §1214.

The recently filed statements of issues indicate the parties have agreed to mediation, and the matter will go to mediation August 10, 2026. Discovery is also ongoing and more time is needed to work on discovery before setting a trial date. Also, Melchor Salada is not properly served and has not yet opposed the first amended petition. It is also unclear what (if any) action Robin C. Bevier, Esq. will take with respect to the First Amended Petition. Therefore, the pleadings are not set, and the Court will not set trial at this time. The Court notes it has no trial availability remaining in 2026 in any event.